Harris County District Court

Cause No. 2025-CV-0022

Michael Wells, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Michael Wells

Date:	May 9, 2025
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Nina Stewart, Marshall & Dominguez LLP

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case. You already have my information from the complaint.

Q: Ma'am, I need it stated on the record, please.

A: Fine. I'm the plaintiff. I'd prefer not to read my name into the transcript, but I understand the rule.

Q: Thank you. Let's talk about the day of the collision. Where were you driving?

A: I was on a road in League City, Texas, heading toward a shopping center. I was making a left turn into the parking lot.

Q: What was the traffic like at the intersection?

A: Light, honestly. There was one vehicle coming the other way, and it was a ways off when I started my turn.

Q: What happened next?

A: The other car came through the intersection much faster than I expected. Its front end hit the passenger side of my car. I remember the airbag didn't deploy, but my body got thrown against the seatbelt and then back into the seat.

Q: Did you lose consciousness at any point?

A: No. I was dazed for a moment, but I got out of the car on my own.

Q: When did you first notice pain?

A: That evening. My neck was stiff, and by the next morning I had a sharp ache across my lower back that made it hard to get out of bed.

Q: Who treated you after the accident?

A: I went to an urgent care clinic the following day. Then I was referred to a physical therapist, and I've been gonig two or three times a week since.

Q: Are you still receiving treatment?

A: Yes. The tehrapist has me doing neck stretches and core exercises at home, and I'm still on a muscle relaxant some nights.

Q: How has the injury affected your daily routine?

A: I used to coach my nephew's soccer team on weekends. I've had to hand that off to my sister. I also can't sit through a movie without shifting around, and I've stopped doing my own yard work.

Q: Has your ability to work changed?

A: I work at a desk, so I've been able to keep working, but I take frequent breaks to stand and stretch. Some days I leave early because the pain builds up by mid-afternoon.

Q: Before this collision, had you ever had neck or back complaints?

A: Nothing serious. I had an occasional stiff neck from sleeping wrong, but nothing that kept me from my normal activities.